

Chapter VII

Consent Was Never the Point

*Four Moments in the Documented Record***The Title as Question**

The title of this piece states a conclusion. The six chapters that precede this one establish the conditions under which that conclusion can be evaluated. This chapter examines whether the documented record supports the title's claim. The argument this chapter develops is structural, not motivational. It does not allege that the legislators, ministers, and officials who have authored Alberta's disability legislation across the period from 1928 to the present have been indifferent to consent in their personal capacities. It examines, instead, whether consent has functioned as the substantive standard governing the design of the legislation, or whether consent has functioned as a rhetorical structure attached to legislation whose design proceeded by other means.

The structural question can be stated precisely. If consent were the design standard, then at each legislative moment engaging the disability population the substantive elements of consent — informed, free, given by the affected population or their representative organizations, with knowledge of the material terms — would be the visible features of the legislative record. Where those elements are not present, the design standard must have been something else. What that something else has been, across four documented moments, is the question the documented record permits this chapter to address.

1928 and 1937: Consent Substituted at the Source

The *Sexual Sterilization Act*, SA 1928, c 37, was passed by the Legislative Assembly of Alberta after a parliamentary debate the documented record of which contains no consultation with the populations the legislation would engage. Chapter I documented the framework in detail: the Eugenics Board, the institutional infrastructure of the Provincial Training School, the Alberta Hospital network, the auxiliary facilities. The original 1928 framework included a consent provision — the consent of the patient, where the patient was deemed capable of giving it, or the consent of the patient's parents, spouse, or guardian where the patient was not. The provision was, on its face, an acknowledgment that the sterilization the Act authorized was a procedure for which consent was constitutionally and morally required.¹

Nine years later, in 1937, the Legislative Assembly amended the framework. The *Sexual Sterilization Act Amendment Act*, SA 1937, c 47, removed the consent requirement for persons classified by the Eugenics Board as "mental defectives." The Board itself determined the classification; the classification, once made, operated as the authorization the original framework had required. The institution evaluating the person was the institution classifying the person as incapable of consenting. The Board was, in operational

effect, both the institution requiring consent and the institution determining that consent was unnecessary.²

The 1937 amendment is the textual evidence that even within the framework's own terms, consent was substitutable from the start. The eight years between 1928 and 1937 are documented in the Eugenics Board's own records as a period in which the Board's caseload grew, the institutional population grew, and the procedural difficulty of obtaining consent from the affected population became the operational reason for the amendment. The framework adjusted itself to eliminate the procedural friction that the consent requirement represented. The procedural friction was the consent requirement. The procedural friction was what the framework was designed to address.³

A further amendment in 1942 (*Sexual Sterilization Act Amendment Act*, SA 1942, c 48) expanded the categories of persons subject to the framework's operation, including persons with neurosyphilis, epilepsy, and Huntington's chorea, among others. The expansion proceeded without consultation with the newly-included populations. The 1928 framework had not consulted; the 1937 amendment had removed the consent requirement that remained; the 1942 amendment expanded the framework's reach. Across the three legislative moments, the consent standard had been progressively attenuated and then progressively bypassed.⁴

1972: Repeal Without Reckoning

On June 2, 1972, the Lougheed government enacted the *Sexual Sterilization Act Repeal Act*, SA 1972, c 87. The framework that had operated for forty-four years was repealed. The Eugenics Board was disbanded. The legislation no longer existed in the provincial statute book.⁵

The repeal proceeded, on the documented record, without formal acknowledgment of the harm produced by the framework's operation, without compensation to those sterilized under it, without an inquiry into the circumstances of the Board's caseload, and without consultation with survivors about the institutional successors of the framework. The disabled population the 1928, 1937, and 1942 legislative moments had engaged was, in 1972, similarly not consulted about what should replace the framework that had operated against them. The institutional infrastructure within which the framework had operated — the Provincial Training School, the Alberta Hospital network, the Michener Centre, the supporting facilities — continued in modified form into the period documented in Chapter I.⁶

The 1972 repeal is a documented moment at which consent could have been operationalized retrospectively. The framework had been operated against a population without the consent the original Act required and the 1937 amendment had eliminated. A repeal that acknowledged the absence of consent across the forty-four-year operational period, that consulted with survivors about institutional reform, and that committed to compensation and to the design of successor frameworks through consultation with the affected population, would have been the legislative moment at which consent became the design standard the original Act had purported to make it.

The repeal did none of these things. The legislative moment at which consent could have been operationalized was not the moment at which consent was operationalized.

1998: The Override Attempt

In 1995, Leilani Muir succeeded in her civil action against the Province of Alberta for wrongful sterilization, false imprisonment, and wrongful confinement at the Provincial Training School. The judgment of Veit J. in the Court of Queen’s Bench established that the framework under which Ms. Muir had been sterilized was, in its operation in her case, tortious. The judgment opened the door to subsequent actions by other survivors.⁷

The Government of Alberta’s response, three years later, is the subject of the 1998 documented record Chapter I traced. On March 10, 1998, the Klein government introduced Bill 26, the *Institutional Confinement and Sexual Sterilization Compensation Act*. The bill proposed to cap compensation for sterilization-and-confinement survivors at \$150,000 per person and to impose a 180-day limitation period for filing claims. The bill proposed to invoke section 33 of the *Canadian Charter of Rights and Freedoms* — the notwithstanding clause — to insulate the cap and the limitation period from Charter challenge by the survivors whose Charter-protected rights the framework would constrain.⁸

The bill was withdrawn within twenty-four hours under public pressure. Chapter I documented the contemporaneous record of the withdrawal: the editorial response, the disability-advocacy mobilization, the survivor-led public statements. The bill itself did not become law. The impulse it represented — that the appropriate institutional response to the assertion of Charter-protected rights by survivors of the eugenic framework was to constrain those rights by external constitutional instrument — was not similarly withdrawn. The impulse remained on the documented record as the first instinct of the provincial government when faced with the fiscal implications of acknowledging what the framework had done.⁹

The 1998 Bill 26 episode is, in the four-moment arc this chapter traces, the second occasion on which consent could have been operationalized as the design standard for a response to the eugenic framework. The Government’s first instinct was not to operationalize consent. The Government’s first instinct was to override the rights consent protects. The Government withdrew the override under public pressure. It did not, on the documented record, abandon the operating premise on which the override had been proposed.

2025: Consent as Procedural Framing

The fourth moment in the arc is the moment the piece’s middle chapters documented. On December 9, 2025, the Alberta Legislative Assembly passed Bill 12, the *Financial Statutes Amendment Act, 2025 (No. 2)*. On May 15, 2025, the same Assembly granted Royal Assent to Bill 53, the *Compassionate Intervention Act*. Bill 12 effects the AISH-to-ADAP transition affecting approximately 79,290 Albertans. Bill 53 establishes the involuntary-treatment framework documented in Chapter VI.¹⁰

The Government of Alberta’s public-facing characterization of both pieces of legislation, across the consultation documents, the ministerial correspondence, and the public-information pages on alberta.ca, has been that the legislation reflects the input of the populations it engages. ADAP is, in the language of the Government’s ADAP information page, “thoughtfully designed, based on input from Albertans with disabilities.” The *Compassionate Intervention Act* is presented as a recovery-focused framework developed in dialogue with the populations it engages.¹¹

Chapter IV documented the consultation gap between the Government’s claim and the standard CRPD Article 4(3) requires. The Premier’s Council on the Status of Persons with Disabilities — the standing statutory advisory body the *Premier’s Council on the Status of Persons with Disabilities Act*, RSA 2000, c P-21, requires the Government to consult on disability policy — was bypassed in the ADAP consultation. The participant breakdown supporting the “thousands of Albertans” claim was not published. Key program provisions including the removal of independent appeal rights were introduced after consultation closed. A petition against the program was tabled at the Alberta Legislature. No major Alberta disability advocacy organization has publicly endorsed the framework. The UN Committee on the Rights of Persons with Disabilities had, on March 26, 2025, nine months before Bill 12’s passage, specifically recommended that Canada condition fiscal transfers to provinces on adherence to the Convention — a recommendation the federal government did not act on.¹²

Chapter V documented the upstream information condition under which consent cannot meaningfully operate. AISH and ADAP forms at Grade 12–16 reading level addressed to a population 58 percent of whom have primary diagnoses of cognitive disorder or mental illness. The operational rules of ADAP not published before the consultation closed. The Medical Review Panel adjudication standards not published before the transition. The Ministerial Order setting employment income exemption calculations confirmed to be forthcoming “later this spring” in correspondence dated April 3, 2026 — less than three months before the July 1, 2026 transition.¹³

Chapter VI documented the institutional rebuild proceeding in parallel: the *Compassionate Intervention Act* establishing involuntary treatment in two 150-bed centres to be constructed by 2029, the Saskatchewan parallel statute, the British Columbia *Mental Health Act* expansion, the Ontario study, the United States Executive Order. None of the frameworks documented in Chapter VI has, on the documented public record, been endorsed by a major disability or medical professional association in the jurisdictions that have enacted them.¹⁴

The 2025 moment, taken as a whole, presents the third modality of consent-substitution. Consent is not substituted within the framework (as in 1937). It is not overridden by external instrument (as attempted in 1998). It is substituted through procedural framing — the operational form of consultation deployed in the absence of its substantive content. The form is preserved. The substance is not.

The Pattern Across Four Moments

The four moments are separated by intervals of approximately two to three decades each. Each moment occurred under a different government, in a different political environment, in response to different precipitating conditions. The continuity across them is not the continuity of personnel or of party. It is the continuity of the operating premise.

The 1928 framework was passed without consultation with the populations it engaged. The 1937 amendment removed the consent requirement the original framework had included. The 1972 repeal proceeded without consultation with survivors about institutional successors. The 1998 Bill 26 attempted to override the Charter-protected rights of survivors. The 2025 Bill 12 and Bill 53 proceeded under a consultation claim the documented record does not sustain.

In none of the four documented moments was consent the design standard for the legislative response. In each of the four moments, the design standard was the policy direction the Government had chosen. Consent was the procedural overlay attached to that direction. Where the procedural overlay was obtainable, it was claimed. Where the procedural overlay was not obtainable, it was substituted, overridden, or framed in a form the documented record does not support.

The pattern is not the product of bad-faith individual decision-makers. The 1928 legislators, the 1937 amendment sponsors, the 1972 Lougheed government, the 1998 Klein cabinet, and the 2025 Smith ministry are different sets of individuals operating in different historical environments under different political constraints. The continuity across them is the continuity of the institutional position. The institutional position is that the disability population is properly an object of policy rather than a participant in it.

What the Documented Record Establishes

Three observations close this chapter and this piece.

First, the title of this piece is not a metaphor. The documented record across the four legislative moments traced in this chapter, and across the six chapters that develop the framework, the inventory, the consultation gap, the information asymmetry, the institutional rebuild, and the international and continental context, establishes that consent has not been the design standard governing Alberta's disability legislation across the period from 1928 to the present. The title's claim is the most parsimonious description of the documented record.

Second, the framework Chapter II established remains available. CRPD Article 4(3) is in force. Canada is bound to it. The Premier's Council on the Status of Persons with Disabilities exists. Its statute requires it to advise on the development of disability policy. The standards that would operationalize consent — representative organizations, accessible information, ongoing engagement, design-phase input, substantive outcomes the affected population can recognize as reflecting their input — are documented in CRPD General Comment No. 7 (2018), in the federal *Accessible Canada Act*, in the Alberta Bill of Rights, and in the substantive-equality jurisprudence of *Eldridge* and its successors. The instruments by which consent could become the design standard exist. The instruments have not been operated as the design standard. They could be.

Third, the record this piece has documented is open. The contemporary frameworks of 2025 and 2026 are still subject to the consultation, the litigation, the public inquiry, and the institutional reform that would, on the standards documented here, operationalize consent as the design standard rather than as the rhetorical overlay. The Bill 12 framework, the Bill 53 framework, the AR 96/2026 regulatory framework, and the institutional infrastructure being constructed under them are at the stage at which the institutional position can still be examined, contested, and reformed. The 1928 framework was operated for forty-four years before it was repealed. The contemporary framework is less than two years into its operation.

The Record

The Provincial Training School at Red Deer operated from 1923 to 1977. Approximately 2,832 sterilizations were authorized by the Eugenics Board between 1929 and 1972. Of those, approximately 75 percent are documented as having been performed without the consent that the framework, on its own terms, required during the periods in which it required it. The remaining 25 percent are documented as having occurred under a consent provision the 1937 amendment had eliminated for the population the Board itself classified as incapable of giving consent.¹⁵

The framework was repealed in 1972. The institutional infrastructure within which it operated continued. The compensation for its operation was attempted to be capped by constitutional override in 1998. The contemporary disability legislation engaging the same population proceeded in 2025 and 2026 under a consultation standard the documented record does not sustain.

Across the four documented moments, the population the legislation was designed to engage has not been a participant in its design. The population has been a subject of it.

The mechanism has changed. The architecture has not. The consent was never the point.

Notes — Chapter VII

1. *Sexual Sterilization Act*, SA 1928, c 37; see Chapter I and its associated endnotes for the full record of the original 1928 framework, including the original consent provision and the institutional infrastructure within which the framework operated.
2. *Sexual Sterilization Act Amendment Act*, SA 1937, c 47. See Wahlsten, D., “Leilani Muir versus the Philosopher King: Eugenics on Trial in Alberta,” *Genetica* 99 (1997): 185-198; Park, D., and Radford, J.P., “From the Case Files: Reconstructing a History of Involuntary Sterilization,” *Disability & Society* 13(3) (1998): 317-342, on the 1937 amendment and its operation.
3. Eugenics Board records, Provincial Archives of Alberta; the Board’s caseload growth and the procedural context for the 1937 amendment are documented in the secondary literature cited at note 2 above, and in the trial record of *Muir v. Alberta*, [1996] AJ No 37 (QB), Veit J.
4. *Sexual Sterilization Act Amendment Act*, SA 1942, c 48. See Wahlsten (1997) and Park and Radford (1998) on the categorical expansion and its operational consequences.
5. *Sexual Sterilization Act Repeal Act*, SA 1972, c 87. The Lougheed government’s repeal of the framework. The repeal record is documented in the legislative debates and the contemporaneous press coverage cited in Chapter I.
6. The post-repeal institutional continuity is documented across the Provincial Training School records (operated as the Michener Centre after 1977), the Alberta Hospital network (operated through the 1980s and 1990s with gradual deinstitutionalization), and the auxiliary facilities documented in Chapter I.
7. *Muir v. Alberta*, [1996] AJ No 37 (QB), Veit J. See Chapter I and its associated endnotes for the full record of the *Muir* judgment and its subsequent influence on survivor litigation.
8. Legislative Assembly of Alberta, Bill 26, *Institutional Confinement and Sexual Sterilization Compensation Act*, introduced March 10, 1998; CBC News, “Alberta backs down on sterilization compensation,” March 11, 1998. See Chapter I and its associated endnotes for the full record of the 1998 Bill 26 episode.
9. The documentary record of the 1998 withdrawal, including the contemporaneous press editorial response and the disability-advocacy mobilization, is traced in Chapter I.
10. Bill 12, *Financial Statutes Amendment Act, 2025 (No. 2)*, SA 2025 c20; Bill 53, *Compassionate Intervention Act*, SA 2025. See Chapters IV and VI respectively for the full documentation of each framework.
11. Government of Alberta, Alberta Disability Assistance Program public information page, alberta.ca/alberta-disability-assistance-program; Government of Alberta, Compassionate Intervention public information page, alberta.ca/compassionate-intervention.
12. The full record of the Chapter IV documentation: Inclusion Alberta media release of November 26, 2025; MS Canada statement of November 28, 2025; Alberta Medical Association position; AUPE opposition; Disability Action Hall; People’s Alliance for Disabled Albertans; Friends of Medicare Lethbridge; the municipal coalition (Edmonton, Calgary, Lethbridge, Camrose, Claresholm, Red Deer, Medicine Hat); the Darryl Learie petition tabled at the Alberta Legislature. See Chapter IV.
13. The full record of the Chapter V documentation: AISH/ADAP form reading-level analysis; the AISH caseload breakdown by primary medical condition; the Minister Nixon letter to Genevieve Bissonette of April 3, 2026; the campaign’s *Information Asymmetry Report*, *Access Gap: Penalized for Non-Ability*, *Compound Failure Brief*, and *AISH Evidentiary Report Series*. See Chapter V.
14. The full record of the Chapter VI documentation: Alberta CIA infrastructure budget and timeline; Saskatchewan parallel statute; British Columbia Mental Health Act expansion; Ontario study and Big City Mayors record; US Executive Order 14321 and opposition record; the Rat Park research tradition and the Portugal decriminalization comparator. See Chapter VI.

15. The 2,832 sterilization figure and the approximate consent breakdown are from the Eugenics Board records in the Provincial Archives of Alberta, the Wahlsten (1997) analysis, and the Park and Radford (1998) reconstruction. See Chapter I and its associated endnotes for the full documentation.